



Mobility: immigration alert

December 2016

United Arab Emirates

Launch of the national program for facilitating the employment of UAE nationals known as the Tawteen program

Executive summary

The Ministry of Human Resources and Emiratization (the MOHRE), has recently launched a national program to encourage the employment of UAE nationals known as the Tawteen Program. This Program aims to facilitate the employment of UAE nationals within specified occupations across the private sector through increased engagement and human resources development programs.

250 UAE-based companies have been selected to pilot the Tawteen Program with effect from 7 December 2016. It is expected that the initiative will be extended to all UAE based companies and so organizations doing business in the UAE should prepare for their eventual inclusion in the initiative.

Background

The Tawteen Program follows UAE labor law principles which require the Labor Department not to approve the employment of non-UAE nationals until it is satisfied that there are no unemployed nationals, registered with the employment section of the Ministry of Labour, who are capable of performing the role.

However, the Tawteen Program aims to increase employment of UAE nationals by positive encouragement of the private sector and the UAE workforce and by facilitating the assessment of UAE nationals by organizations for positions in private sector. The framework of the program allows organizations to reject UAE national candidates' applications should the candidates not be considered suitable for the position.

In this context the stated objectives of the Tawteen Program are to:

- ▶ Enhance the participation of UAE nationals in highly-qualified professions in the private sector.
- ▶ Promote a better understanding of the needs and expectations of the local labor market within UAE based companies and to promote the training and development of UAE nationals.
- ▶ Provide a seamless, accessible, and smart e-platform, to attract targeted UAE national candidates.
- ▶ Provide privileges and incentives to private sector entities that support these objectives.

Key provisions

The cornerstone of the Tawteen Program is a web-based portal called the Tasheel system, which is linked to the Emiratization Portal. All new vacancies of participating UAE employers should be posted in this system which facilitates the interview, feedback and recruitment process for each vacancy as follows:

- ▶ Organizations with a new position to fill will log in into the Tasheel system and list the position on the new employment offer service. If the company and the employment position are targeted for Emiratization, further details on the employment vacancy will be requested in order to post the new vacancy in the Emiratization Portal.
- ▶ Based on the details provided, a job matching will be automatically run within the Tasheel database and a list of qualified UAE national candidates will be displayed in the Emiratization Portal. The employer will be notified to login into Emiratization Portal to schedule interviews with the qualified UAE national candidates.
- ▶ After conducting interviews, the employer will enter the interview feedback in the Emiratization Portal, either

accepting or rejecting the candidates, specifying the reason(s) in the event of rejection.

- ▶ When the right candidates are selected the employer will proceed with the National work permit application through Tasheel system and all job related information will be retrieved from the system (the same information entered in the first stage).

Where no UAE national meets the criteria for the vacancy, the employer may proceed to fill the vacancy with workers from outside the UAE.

Failure to comply with the above recruitment process would prevent a company from being able to apply for a non-UAE national through the Tasheel System.

Companies registered in the Tawteen Program will be rated and incentivized through a points based system for their efforts in employing UAE nationals and contributing to the UAE's goals on the employment of nationals. In this regard, training and development of Emirati skills, the creation of an inclusive work environment, and success in promoting Emirati employees to senior positions will be particularly valued.

Based on the number of points accumulated, partner companies will be classified, as Silver, Gold or Platinum and qualify for special privileges. The special privileges granted based on the classification include, a fast track facilitation of transactions, a MOHRE account manager exclusively dedicated to the company, accelerated issuance of renewal work permits, exemption from automatic suspension with approval from the Minister or his Deputy, and a reduction of visa application fees.

Next steps

250 UAE-based companies have been selected to pilot the Tawteen Program with effect from 7 December 2016. These companies will be requested to fast track the implementation of the Tawteen Program. However, looking forward, all UAE based employers should factor the Tawteen Program into their business operations as the MOHRE is planning to extend the program broadly. In this context, all UAE based employers are advised to:

- ▶ Strengthen, review or design the company's strategy for employing UAE nationals.
- ▶ Review the company's HR procedures, to ensure that their recruitment and immigration application procedures allow a smooth implementation of the Tawteen Program and meet ongoing obligations.
- ▶ Review the company's HR policies, to ensure the policies allow the inclusion and fulfilment of all employees in the workplace, including UAE nationals.
- ▶ Implement training and development solutions to bridge the potential gap(s) between the company's needs and the expectations of the UAE workforce.
- ▶ Implement workforce planning procedures to ensure the needs of the organization, and those of the workforce are aligned with UAE nationalization objectives.
- ▶ Implement health check processes to ensure entity readiness to meet corporate labor market regulations.
- ▶ Conduct an HR policies and procedures due diligence in the event of transactions such as merger and acquisitions and joint venture agreements.

Companies looking to expand their operations and workforce in the UAE are advised to consider how these changes will impact their expansion into this market from an assignment perspective.

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